



## CHAPTER cl.

An Act to confirm a Provisional Order of the Local A.D. 1911.  
Government Board relating to Milford Haven.

[18th August 1911.]

**W**HEREAS the Local Government Board have made the  
Provisional Order set forth in the schedule hereto under  
the provisions of the Public Health Act 1875:

38 & 39 Vict.  
c. 55.

And whereas it is requisite that the said Order should be  
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty  
by and with the advice and consent of the Lords Spiritual and  
Temporal and Commons in this present Parliament assembled  
and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule  
hereto shall be and the same is hereby confirmed and all the  
provisions thereof shall have full validity and force.

Order in  
schedule  
confirmed.

2. This Act may be cited as the Local Government Board's  
Provisional Order Confirmation (No. 15) Act 1911.

Short title.



A.D. 1911.

## SCHEDULE.

### URBAN DISTRICT OF MILFORD HAVEN.

*Milford  
Haven Order.*

*Provisional Order for altering the Milford Improvement  
Act 1857 the Milford Improvement Act 1869  
and certain Confirming Acts.*

To the Urban District Council of Milford Haven;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Milford Haven (herein-after referred to as “the Council”) are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Milford Haven (herein-after referred to as “the District”);

And whereas there are in force in the District the unrepealed provisions of the Milford Improvement Act 1857 and the Milford Improvement Act 1869 (which Act and the Act of 1857 are herein-after together referred to as “the Local Acts”) as altered by the Milford Haven Order 1884 which was confirmed by the Local Government Board’s Provisional Orders Confirmation (No. 7) Act 1884 by the Milford Haven Order 1887 which was confirmed by the Local Government Board’s Provisional Orders Confirmation (No. 7) Act 1887 by the Milford Haven Order 1888 which was confirmed by the Local Government Board’s Provisional Orders Confirmation (No. 3) Act 1888 by the Milford Haven Order 1900 which was confirmed by the Local Government Board’s Provisional Orders Confirmation (No. 8) Act 1900 and by the Milford Haven Order 1907 which was confirmed by the Local Government Board’s Provisional Orders Confirmation (No. 2) Act 1907 (which Provisional Orders and Confirming Acts are herein-after referred to respectively as “the Orders” and “the Confirming Acts”) and by certain other Provisional Orders which were confirmed by Parliament but do not affect the subject matter of this Order;

And whereas by the Local Acts as altered by the Orders the Council or their predecessors were empowered to borrow moneys for the purposes of their gas undertaking and it is expedient that the Council be empowered to borrow further moneys for those purposes;



[1 & 2 GEO. 5.]      *Local Government Board's*      [Ch. cl.]  
*Provisional Order Confirmation (No. 15) Act, 1911.*

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Acts and the Confirming Acts in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts and the Confirming Acts so far as they respectively relate to the Orders shall be partially repealed and altered so that the following provisions shall take effect that is to say:—

Art. I. The Council may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the revenue of their gas undertaking and of the district fund and general district rate of the district or upon either of those securities such further moneys not exceeding twelve thousand pounds as may from time to time be required for the purposes of their gas undertaking.

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38 & 39 Vict.  
c. 55.

Additional  
borrowing  
powers for  
gas under-  
taking.

Art. II. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Local Loans  
Act and certain  
provisions of  
Public Health  
Act made  
applicable.

Art. III. The moneys borrowed under Article I. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Period for  
repayment  
of borrowed  
moneys.

Art. IV.—(1) The Council shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Mode of  
repayment.

(2) Subject to the provisions of Article V. of this Order if the Council determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

Formation  
maintenance  
and appli-  
cation of  
sinking fund.

(A) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the



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moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(B) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(5) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.



[1 & 2 GEO. 5.]      *Local Government Board's*      [Ch. cl.]  
*Provisional Order Confirmation (No. 15) Act, 1911.*

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

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Art. V.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

Increase  
reduction or  
discontinu-  
ance of pay-  
ments to  
sinking fund.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Surplus of  
sinking fund.

Art. VI.—(1) The Council shall have power—

(A) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied

Power to  
re-borrow.



[Ch. cl.]                      *Local Government Board's*                      [1 & 2 GEO. 5.]  
*Provisional Order Confirmation (No. 15) Act, 1911.*

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from other funds of the Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of moneys derived from the sale of land; or

(D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Application  
of borrowed  
moneys.

Art. VII. All moneys from time to time borrowed under this Order shall be applied by the Council only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Local Government Board determine.

Receiver.

Art. VIII.—(1) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Return as to  
provision for  
repayment of  
debt.

Art. IX.—(1) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve



[1 & 2 GEO. 5.]      *Local Government Board's*      [Ch. cl.]  
*Provisional Order Confirmation (No. 15) Act, 1911.*

months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

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(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Art. X. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Council and the Board

*Inquiries and expenses.*



[Ch. cl.]                      *Local Government Board's*                      [1 & 2 GEO. 5.]  
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A.D. 1911.    may certify the amount of the costs so incurred and any sum so  
*Milford*    certified and directed by the Board to be paid by the Council shall be  
*Haven Order.* a debt due to the Crown from the Council.

Short titles.    Art. XI. This Order may be cited as the Milford Haven Order  
1911 and the Milford Haven Orders 1884 to 1907 and this Order may  
be cited together as the Milford Haven Orders 1884 to 1911.

Given under the Seal of Office of the Local Government Board  
this Thirty-first day of May One thousand nine hundred and  
eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

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